

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

April 11, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Broyles, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #10 was removed from the Consent Agenda. Upon request by Ms. Ash, and pursuant to support received by Mr. Collins and Ms. Broyles, agenda item #14(b) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on March 28, 2011. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Mr. Pierson moved to approve payment of vouchers as presented, seconded by Mr. Allen. Dr. Rinne moved to divide the question to allow for a separate vote on the voucher payable to Ameri-Tech HVAC Services, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Mr. Pierson moved to approve payment of the Ameri-Tech HVAC Services voucher in the amount of \$30,437.50, seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers. Upon inquiry, Todd Feezer, Assistant Director, Parks and Recreation Dept., explained a voucher payable to All Sports Enterprises, Inc. (\$16,900.00) was for replacement of the floor at the David R. Romero Youth Activity and Community Center as a sports floor, as originally planned, as the current floor type is not conducive to sports activities. Main motion, excluding the previously approved voucher to Ameri-Tech HVAC Services, carried. Voting "yes" -- all members of the governing body.

Mayor Kaysen opened a public hearing to receive comments and input for a restaurant liquor license application filed with the City Clerk's Office for Re-o-na Sushi and Thai d/b/a Re-o-na Sushi Bar and Thai Cuisine, 112 W. 17th St., Cheyenne, Wyoming. There being no comments or input and the purpose of the hearing having been met, Mayor Kaysen closed the public hearing and referred the item to Finance Committee.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for parcels of land being situated in the SE1/4 of Section 11, and in the NE1/4 of Section 14, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (generally located at Interstate 25 and West College Drive). Jim Flesher, Urban Planning Office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

Mayor Kaysen opened a public hearing to receive public input and comments on the Cheyenne Downtown Development Authority's (DDA) 2006 Market-Based Downtown Plan pursuant to Wyo. Stat. §15-9-208. Christie DePoorter, DDA Executive Director, reviewed strategies included in the Plan for growth, improvements and opportunities to benefit areas within the DDA District, and noted the plan inadvertently was not presented to the governing body for approval after its completion in 2006. Upon inquiry, Ms. DePoorter clarified the DDA special mill levy election is scheduled for May 10, 2011. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

“Ordinance amending a portion of Ordinance No. 3891 by modifying the conditions within the zoning classification of MUB Conditional Mixed Use with Business Emphasis District for Lots 1 and 2; and the north 66-feet of Lots 3 and 4, Block 195, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. 23rd Street and Russell Avenue).” Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Ash. It was noted the amending ordinance will increase garage footage to allow for storage of vehicles utilized by a funeral home. Motion carried. Voting “yes” -- all members of the governing body. (#3919)

“Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from AR Agricultural Residential District to MR-2 Medium Density Residential-Developing District for Block 1, Lots 6-15; Block 3, Lots 1-15 and Block 4, Lots 1-8; HR-2 High Density Residential-Developing District for Block 1, Lots 1-5 and Block 2, Lots 1-26; a replat of a portion of Tracts 7 and 10, Dell Range Addition, 2nd Filing, Cheyenne, Wyoming, also to be known as Granite Hills Subdivision (located north of and adjacent to Carla Drive, between Ridge Road and College Drive)” -- referred to Public Services Committee (sponsor - Mr. Collins).

“Resolution adopting revised liquor license general guidelines for the review of applications for Retail and Bar and Grill liquor licenses available through the City of Cheyenne and authorizing a time frame to receive applications.” Reporting for Finance Committee, Mr. Valdez moved to adopt, seconded by Ms. Broyles. Ms. Broyles moved to amend #5(d) of the revised guidelines by adding the language “or business whose primary patrons are under the age of 21” (years) at the end of the sentence, seconded by Mr. Pierson. Discussion followed on determining who is considered to be an adult (18 vs. 21 years); interpretation of “primary patrons”; past application for a liquor license involving distance from a dance studio involving youth participants, and utilizing the general guidelines as a reference when considering applications. Upon inquiry, Matt Ashby, Planning

Services Director, provided information on the approximate length of a typical block in the downtown area. Motion to amend failed. Voting “yes” -- Ms. Broyles, Mr. Pierson, Mr. Spiker and Mr. Valdez. Voting “no” -- Mr. Allen, Ms. Ash, Mr. Brown, Mr. Collins, Dr. Rinne and Mayor Kaysen. Main motion carried. Voting “yes” -- all members of the governing body. (#5269)

“Resolution authorizing the Mayor to terminate Lease Agreement No. 4745 entered into by the City of Cheyenne and Cheyenne American Legion Post 6 Baseball Club, Inc., dated March 28, 2005.” Ed Melko spoke generally in favor of the Resolution; questioned fees charged by Post 6 for use of the field by other teams and whether the City has the capability to audit Post 6 records, and expressed concerns regarding use of locker rooms, signage revenue received by Post 6, federal/state grant funding that has been utilized to build the facility and affiliated use requirements relative to the City’s future availability to receive grant funds. Upon inquiry, Todd Feezer, Assistant Director, Parks and Recreation Dept., explained user fee tiers in place providing revenue to the City. Buck McVeigh, Post 6 Board representative, explained that Post 6 is a not for profit organization that relies on sponsors for funding, and reviewed the history of how Powers Field resulted in being built, which involved fund-raising efforts by Post 6 to match the federal Land and Water Conservation grant funds the City received. He reviewed usage of the field by other teams; use of locker rooms by Post 6; revenues received from fence signage (sponsorship advertising); Post 6 baseball program benefits to community youth; changes that had occurred in the scheduling process; Post 6’s facility maintenance and supervisory responsibilities and financial investment; components of the current agreement, and a letter dated April 2010 that had been received from a representative of the U.S. Dept. of Interior, Land and Water Conservation grant funds office, regarding equal and open access to the facility by the public pursuant to grant provisions. Mr. McVeigh indicated his willingness to further discuss issues involved in meeting the City’s grant funding requirements. Jade Lain, Post 6 coach and supporter of Post 6’s baseball program, spoke in opposition to the Resolution. He discussed Post 6’s baseball program benefits to youth and team member criteria; limited revenue sources available for the program; Post 6 financial investment and maintenance of field and facility areas, and the need for another baseball field at the Powers Field location. During his comments he presented Mr. McVeigh with a check donation to help towards building another field, adding that he hoped the City and other user groups will join together to help fund a second field. Discussion included the following topics: Issues involving availability of both locker rooms to other teams who utilize the facility; revenue received by Post 6 involving outfield fence (sponsorship advertising) signage, and open and equal access to Powers Field by others pursuant to Land and Water Conservation grant requirements. Speaking in support of the benefits the Post 6 program provides were Rudy Apodaca and Warren Ayala. Dallas Lain, Post 6 Board member, discussed interpretation of grant funding requirements at both the federal and state level; need for continuing transparent discussions regarding parameters involving use of the federal grant funds involved in building Powers Field, and scheduling of users/games for the facility. Upon inquiry, Mr. McVeigh provided information concerning Post 6’s utilization of locker rooms and fence sponsorship signage, and feasibility of an on-site storage unit in lieu of using one of the locker rooms for equipment storage. Discussion continued on negotiations between the City and Post 6 relative to the “sticking points” that had been raised involving the grant agreement (entered into by the City) requirements and the current lease agreement with Post 6; federal and state staff interpretations of the Land and Water Conservation grant requirements, and fence signage. Ron Nimmo, Post 6 Board member, discussed availability to others to use the baseball facility; eligible participants for the Post 6 program;

scheduling changes that occurred in 2010 at the City's request; use of locker rooms; sponsorship signage; facility scheduling; proper interpretation of grant requirements, and importance of field availability to Post 6's program. Mr. Valdez reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to adopt, seconded by Mr. Valdez. Upon inquiry concerning whether the City could transfer its obligations under the grant to other City facilities under a 6 (f) conversion process, Dominic Bravo, Wyoming Dept. of State Parks and Cultural Resources, State Liaison Officer for the Land and Water Conservation Fund Program, provided brief information on the 6 (f) conversion requirements and stated the City doesn't have the amount of land needed to meet conversion requirements due to past 6 (f) conversions that have been approved. Discussion continued and included the following topics: Future federal grant funding opportunities that may be jeopardized if the City does not meet grant agreement provisions involving the current lease agreement with Post 6; communications and discussions with Post 6 to address issues; community importance of continuing eligibility by the City to seek Land and Water Conservation grants; use of locker rooms; sponsorship signage areas and available placements; public use of Powers Field generally, federal grant agreement requirements and state parks involvement, and enforcement of requirements by federal and state agencies. Mr. Spiker moved to postpone for 30 days to allow for further discussions between the City and Post 6 representatives, seconded by Ms. Broyles. Ms. Lain expressed her personal commitment to work toward re-negotiating. Upon inquiry, Mr. Feezer provided information he was aware of relative to offers made by the City to Post 6 regarding a revised lease agreement, and Mr. Bravo stated the City must be in compliance with grant requirements, acknowledging that the City is attempting to remedy the issues involved, however, timeliness to comply will factor in at some point, and confirmed that accessibility to any part of the facility (including locker rooms and advertisement signage fence area) must be provided. Upon further inquiry, Mr. Feezer explained if the motion to postpone fails and the City Council decides to terminate the lease, Post 6 would be asked to remove equipment, etc. from the property, and that scheduling for use of the field for Post 6 and others would be on a fair and equitable basis. Upon inquiry, Jason Sanchez, Grounds and Facilities Director, Parks and Recreation Dept., advised City staff would do their best to maintain the fields if an agreement is unable to be reached with Post 6, however, it might require additional manpower. Discussion continued on the purpose of postponement; parties to be involved in discussions/negotiations during the postponement time frame; fair and equitable use of the facility, including locker rooms and signage space; compliance with federal requirements and the City being potentially disbarred from receiving future federal funding if compliance is not achieved; potential litigation; correspondence that had been received from the state dated Jan. 21, 2011 and April 11, 2011, and issues to be discussed/resolved. Following further comments and upon inquiry regarding the termination time frame if the Resolution was adopted, Dan White, City Attorney, explained if the Resolution is approved it only authorizes the mayor to terminate the lease. Termination of the lease would not be effective until 60 days from receipt of notice. He noted if the motion to postpone passes, the Resolution will come back to the governing body in 30 days, or an amended lease could be considered if negotiations are successful. Mayor Kaysen confirmed that, as Post 6 has a legal contact, the City Attorney, Mr. White, would continue to be the City's point person for communication. Ms. Lane verified Post 6's legal counsel will contact the City Attorney to schedule a meeting. Motion to postpone for 30 days (to May 9, 2011) carried. Voting "yes" -- all members of the governing body with the exception of Ms. Ash, Mr. Brown and Mayor Kaysen voting "no". It was noted that the item will be back on the City Council agenda for its May 9th meeting at which time it will be referred to Finance Committee.

Following a 15 minute recess, Mayor Kaysen reconvened the meeting at 9:05 p.m.

[CA] “Resolution approving the Cheyenne Downtown Development Authority's 2006 Market-Based Downtown Plan (Plan of Development) pursuant to Wyo. Stat. § 15-9-208” -- referred to Public Services Committee (sponsor - Dr. Rinne).

[CA] “Resolution determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for the property described as a parcel(s) of land being situated in the SE1/4 of Section 11, and in the NE1/4 of Section 14, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (generally located at Interstate 25 and West College Drive)” -- referred to Public Services Committee (sponsor - Mr. Collins).

Contract between the City of Cheyenne and WINhealth Partners for wellness coaching. Mark Shubert expressed concerns with the cost of employee health insurance and commented on employee vs. employer share of premiums and the benefits employees have by being provided coverage through the City vs. health insurance coverage and costs in the private sector. Upon inquiry whether Council members, who may participate in the City's health insurance plan, have a conflict of interest in voting on matters involving the health insurance program, City Attorney Dan White opined that it was not a conflict of interest as it does not represent an individual interest or benefit that isn't also received by other program members. Mr. Valdez moved to approve, seconded by Mr. Brown. Upon inquiry, Barb Dorr, City Treasurer, advised an end date isn't listed in the contract as it is implied the City will enter into another agreement for the term. Tracy Peterson, WINHealth, advised contract term dates are flexible for the program; stated there will be no pro-ration of fees with regard to when employees may participate in the program, and explained components of the wellness program. Upon inquiry, Ms. Dorr provided information on potential employee incentives; City Council determination, through consideration of the annual employee terms and conditions ordinance, relative to whether any premium adjustment will be assessed to non-participating program employees; City Wellness Committee recommendation that non-participating employees pay 25% of premium share with participating employees paying 12%; purpose of the wellness program to keep down health insurance costs and employee educational sessions, and confirmed those Council members who are on the City's health insurance plan will also be subject to the potential premium increase if they are non-participants of the wellness program through WINhealth. Discussion followed on the approval of the plan running concurrently with the employee terms and conditions for employee awareness of a potential premium adjustment, offering of incentives to employees; other public entities' wellness programs (i.e. State, County and Board of Public Utilities), and whether a wellness program has been shown to provide effective savings. Upon inquiry, Ms. Peterson explained the contract cost is based upon participants, and Mr. White advised amendment language could be added to the contract stating the City has the right to terminate the contract. Judi Just, Accounting Division, advised that any proposed changes to the contract will need to be approved by WinHealth's attorney; provided potential wording for the terms and conditions ordinance that would reflect program participating employees would pay 12.5% of premium costs and non-participating employees would pay 25%. Upon inquiry, Rich Wiederspahn, Human Resources Director, advised it has been approximately 2½ years since the City has requested proposals for health insurance coverage, and Ms. Dorr explained if the City changes health insurance providers, the City could still participate in WINHealth's wellness program. Upon query, Mayor

Kaysen advised, in conjunction with budget preparation for the upcoming fiscal year, the possibility of an employee cost of living adjustment is still being reviewed. Mr. Brown moved to postpone for 2 weeks (to April 25, 2011), seconded by Ms. Ash. It was noted that amendment wording would be drafted relative to inclusion of a termination clause and term for services within the contract. Motion to postpone carried. Voting "yes" -- all members of the governing body.

Wyoming Children's Trust Fund Grant Contract between the City of Cheyenne, Youth Alternatives, Special Friends, and State of Wyoming, Department of Family Services, Protective Services Division, to provide Outreach Mentoring Program. Ms. Ash declared a conflict of interest (due to employment involvement with funding) and vacated Council Chambers. Mr. Valdez moved to approve, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Ms. Ash returned to Council Chambers. (#5663)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District Number One for the use of buses owned by the Laramie County School District Number One for Public Transportation Services during the 2011 Cheyenne Frontier Days. Motion (per Consent Agenda) carried. (#5664)

[CA] Agreement between the City of Cheyenne and Cheyenne Frontier Days, Inc. for the use of buses owned by the Laramie County School District Number One for Public Transportation Services during the 2011 Cheyenne Frontier Days Celebration. Motion (per Consent Agenda) carried. (#5665)

[CA] Agreement between the City of Cheyenne and Cheyenne Frontier Days, Inc. for the use of the parking lot location on the F. E. Warren Air Force Base for Public Transportation Services during the 2011 Cheyenne Frontier Days Celebration. Motion (per Consent Agenda) carried. (#5666)

[CA] Agreement between the City of Cheyenne and Cheyenne Umpires Association to provide umpire services for the 2011 Softball Season -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Josh Cossitt to provide tennis services and instruction for the 2011 season -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Lipizzaner Stallions, Inc. for Lipizzaner Stallion Show at the City of Cheyenne-owned Ice and Events Center -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for the 2011-2012 Concert Season -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for Youth Education Concerts -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and William Linden for crime victim assistance services (Victim Services grant) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and Laramie County School District #1 to provide transportation services for 2011 Summer Recreation Camp -- referred to Finance Committee.

[CA] Easement Agreement between the City of Cheyenne and Union Pacific Railroad Company for permission to construct, use, maintain, repair and renew a portion of East Cheyenne Greenway Extension (Phase IIIb-Part 2) located on, along and across Union Pacific Railroad Company property -- referred to Public Services Committee.

[CA] Cooperative Agreement between the City of Cheyenne and Wyoming Department of Transportation for permanent pavement markings at all railway crossings on City streets (Federal funds) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Parks and Recreation Department, and The Design Studio, Inc. for renovation and expansion of the Conservatory/Greenhouse at Cheyenne Botanic Gardens (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Contract for Professional Engineering services between the City of Cheyenne, Engineering Department, and Ayres Associates for Lake Minnehaha Remediation Plan Project at Holliday Park (DEQ grant) -- referred to Finance Committee.

[CA] Contract Modification No. 3 to Contract No. 5056 between the City of Cheyenne, Sanitation Division, and Magic City Enterprises for sorting, processing and marketing of recyclable materials at blue bin sites. Motion (per Consent Agenda) carried. (#5056)

[CA] Contract Modification No. 1 to Contract No. 5650 between the City of Cheyenne, Parks and Recreation Department, and Superior Electric to provide electrical correction and install new wire to three scoreboards for Brimmer Park (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5394 between the City of Cheyenne, Public Works Department, Facilities Maintenance Division, and Ameri-Tech HVAC Services to exercise the option clause extending the current contract for mechanical, heating, ventilating, and air conditioning system maintenance for City buildings -- referred to Finance Committee.

[CA] Consideration of Bid #M-12-11 for a contract between the City of Cheyenne and Pacific Steel and Recycling, Gillette, Wyoming, for the removal of all appliances, metals and steel from the City Landfill. Motion (per Consent Agenda) carried. (#5667)

[CA] Consideration of RFP-#10-11 for the removal, furnishing and installing of tile in the Municipal Pool locker rooms and showers for the City of Cheyenne Aquatics Division (2007-2010

1% Sales Tax). Motion (per Consent Agenda) carried (Cheyenne Tile and Stone; amount not to exceed \$45,801.00).

[CA] Consideration of Bid #M-14-11 for a contract between the City of Cheyenne and S & S Builders, LLC, Cheyenne, Wyoming, for concrete for Street and Alley overlay project (2007-2010, 2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried. (#5668)

[CA] Consideration of Bid #R-24-11 for one new 2011 pick-up truck with two wheel drive for Public Works Department, Traffic Division, from Spradley Barr Motors, Inc. of Cheyenne, Wyoming (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Request to change retail liquor dispensing room location and dimensions for Lambousis Revocable Trust d/b/a Mayflower, 112 W. 17th St., Cheyenne, WY. Motion (per Consent Agenda) carried.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the 2011 Wyoming Association of Municipalities Annual Convention -- referred to Public Services Committee.

Announcement was made of a Public Hearing to be held Monday, April 25, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for Fiscal Year 2011-2012 Annual Action Plan, City of Cheyenne Community Development Block Grant (CDBG) entitlement.

Announcement was made of the Appointment of Chuck Otto to the Greenway Advisory Committee to be confirmed April 25, 2011.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 9:55 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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